

SUPREME COURT OF THE STATE OF NEW YORK  
KINGS COUNTY

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ROBERT BANKS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RAUL  
NAREA (SHIELD #7493), POLICE OFFICER PAUL  
PALMINTERI (SHIELD #18460), POLICE OFFICER  
JOHN DOE #1, POLICE OFFICERS JOHN DOES #2-4  
(names and numbers of who is unknown at present), and  
other unidentified members of the New York City Police  
Department,

Defendants.  
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**SUMMONS**

Index #

Basis of Venue:  
Place of Incident

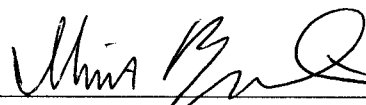
Plaintiff designates  
Kings County  
as the place of trial.

**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
April 26, 2015

Respectfully submitted,



ILISSA BROWNSTEIN, ESQ.  
Attorney for Plaintiff  
65 Broadway (Suites 813 & 814)  
New York, New York 10006  
(212) 691-3333

CITY OF NEW YORK: CORPORATION COUNSEL  
100 Church Street  
New York, NY 10007

POLICE OFFICER RAUL NAREA (SHIELD #7493)  
POLICE OFFICER PAUL PALMINTERI (SHIELD #18460)  
83 Precinct Brooklyn, New York

SUPREME COURT OF THE STATE OF NEW YORK  
KINGS COUNTY

-----X  
ROBERT BANKS,

**VERIFIED COMPLAINT**

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, POLICE OFFICER RAUL NAREA (SHIELD #7493), POLICE OFFICER PAUL PALMINTERI (SHIELD #18460), POLICE OFFICER JOHN DOE #1, POLICE OFFICERS JOHN DOES #2-4 (names and numbers of who is unknown at present), and other unidentified members of the New York City Police Department,

Defendants.  
-----X

Plaintiff **Robert Banks**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

**PARTIES**

2. Robert Banks is a citizen of the United States and resident of Brooklyn, New York.
3. Police Officer Raul Narea (Shield #7493) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Raul Narea (Shield #7493) is being sued in his individual capacity and official capacity.
5. Police Officer Paul Palminteri (Shield #18460) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

6. Police Officer Paul Palminteri (Shield #18460) is being sued in his individual capacity and official capacity.
7. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
9. New York Police Officers John Doe #2-4 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. Police Officers John Doe #2-4 are being sued in his individual capacity and official capacity.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. Plaintiff in furtherance of his State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
15. The City of New York held a 50(H) hearing examination of the Plaintiff on April 10, 2015.

## **STATEMENT OF FACTS**

16. Robert Banks is 53 years old. In 1984, he received his Associates Degree from Dutchess Community College.
17. He is currently a self-employed house painter. During the time of his arrest, he worked at Ready Willing & Able DOE Foundation where he cleaned up New York City streets. Prior to that, he worked at the Congress of Racial Equality as a Sales Manager for four years.
18. On October 7, 2014, at approximately 1:00 p.m. at Knickerbocker Avenue near Trotman Street in Brooklyn, New York, Mr. Banks was walking to his mother's house to do laundry when he was stopped by police officers.
19. Two officers pulled over and asked Mr. Banks for his ID, which he provided. One officer stepped out of the vehicle and began searching Mr. Banks's pockets. The officer did not recover anything from the search.
20. Officers claimed Mr. Banks was involved with drugs. Mr. Banks had no drugs or other contraband on his person.
21. Mr. Banks was charged with possession of a controlled substance based on an alleged police-observed buy.
22. While he was at the precinct, two other officers conducted an unlawful strip search. Mr. Banks was asked to take off his shirt, his pants, his socks, and lastly his underwear. He was then asked to shake his underwear inside out.
23. He was incarcerated for approximately 35 hours and was ROR'ed at arraignment.
24. Mr. Banks attended three court appearances.
25. On January 14, 2015, his case was dismissed on motion of the prosecutor.
26. On account of his arrest, he lost his job and his housing. The DOE Foundation provided a bed for him to stay so long as he abided by their curfew. The arrest caused him to miss his curfew which resulted in him losing his bed and his job.
27. Plaintiff filed a notice of claim on January 26, 2015.

## **FIRST CAUSE OF ACTION**

### **VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS**

28. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 27 with the same force and effect as if more fully set forth at length herein.
29. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive forced based as well as an unlawful strip search in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

## **SECOND CAUSE OF ACTION**

### **FALSE ARREST AND FALSE IMPRISONMENT**

30. Plaintiff repeats and alleges paragraphs 1 through 29 as if fully set forth herein.
31. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
32. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

### **THIRD CAUSE OF ACTION**

#### **MALICIOUS PROSECUTION**

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
35. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
36. Defendants commenced and continued a criminal proceeding against plaintiff.
37. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.
38. The prosecution and criminal proceedings terminated favorably to plaintiff on January 14, 2015.
39. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
40. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

### **FOURTH CAUSE OF ACTION**

#### **ASSAULT**

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Defendant's strip searched Plaintiff.
43. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

## **FIFTH CAUSE OF ACTION**

### **BATTERY**

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.
46. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Defendant's strip searched Plaintiff.
47. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
48. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

## **SIXTH CAUSE OF ACTION**

### **INVASION OF PRIVACY**

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously subjected plaintiff to an illegal and sexually abusive search, and in doing so violated plaintiff's right to privacy.
51. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the NYPD which are therefore responsible for their conduct.
52. The City, as the employer of Defendant is responsible for the wrongdoing under the doctrine of respondeat superior.

## **SEVENTH CAUSE OF ACTION**

### **SEXUAL ABUSE**

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously strip searched plaintiff and in doing so violated plaintiff's right to privacy.
55. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the NYPD which are therefore responsible for their conduct.
56. The City, as the employer of Defendant is responsible for the wrongdoing under the doctrine of respondeat superior.

## **EIGHTH CAUSE OF ACTION**

### **NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.
58. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

## **NINTH CAUSE OF ACTION**

### **FAILURE TO INTERVENE**

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
61. Defendants failed to intervene to prevent the unlawful conduct described herein.

62. As a result of the foregoing, plaintiff was subjected to an illegal strip search.
63. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
64. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

### **TENTH CAUSE OF ACTION**

#### **NEGLIGENCE**

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.
66. Defendants owed a duty of care to plaintiff.
67. Defendants breached that duty of care by subjecting him to an illegal strip search.
68. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
69. All of the foregoing occurred without any fault by plaintiff.
70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

### **ELEVENTH CAUSE OF ACTION**

#### **NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.
72. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

73. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
74. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

## **TWELVTH CAUSE OF ACTION**

### **MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.
76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
77. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
78. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
79. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
80. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.
81. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

**WHEREFORE, ROBERT BANKS**, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York  
April 26, 2015

Respectfully submitted:

By:   
ILISSA BROWNSTEIN, ESQ.  
Attorney for Plaintiff  
65 Broadway  
Suites 813 & 814  
New York, New York 10006  
(212) 691-3333

TO: CITY OF NEW YORK  
CORPORATION COUNSEL  
100 Church Street  
New York, New York 10007

POLICE OFFICER RAUL NAREA (SHIELD #7493)  
83 Precinct  
Brooklyn, New York

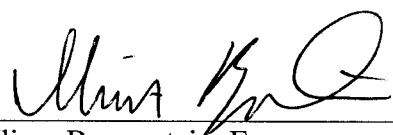
POLICE OFFICER PAUL PALMINTERI (SHIELD #18460)  
83 Precinct  
Brooklyn, New York

## **ATTORNEY'S VERIFICATION**

**ILISSA BROWNSTEIN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
April 26, 2015

  
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Ilissa Brownstein, Esq.